IN THE SUPREME COURT OF INDIA, NEW DELHI

(ORIGINAL JURISDICTION)

CONTEMPT OF COURT PETITION (Civil) NO. /2009

BETWEEN:

Sri. Gajanana Krishna Hire and another PETITIONERS

Vs.

The State of Karnataka and others RESPONDENTS

****

AFFIDAVIT OF GAJANANA KRISHNA HIRE,
S/O. KRISHNA RAMACHANDRA HIRE, AGED 63 YEARS, VYDIK VIDHVAN, KOTI THIRTHA ROAD, GOKARNA,
UTTAR KANNADA DISTRICT

I, the above described Gajanana Krishna Hire, now at Bangalore, do hereby solemnly affirm and state as under:-

1. I am the 1st petitioner in the above mentioned contempt of court petition and am fully conversant with the facts of the case.

2. I have been duly authorised by the other petitioner also, to swear to this affidavit on his behalf as well, which I hereby do.

3. The accompanying Contempt of Court Petition has been prepared by our counsel, on my instructions, and on the basis of the material and documents which have been supplied by us, to her. I have quite carefully gone through the contents of the said contempt of court petition, including the Synopsis and the List of Dates; and state that the contents of the same are all true to the best of my knowledge and belief; and that the contentions of law raised in the petition are based on the legal advice tendered to us which we believe to be true.

4. The Annexures filed with the Contempt of Court Petition are all true copies of their respective originals.

5. No material fact has been suppressed from this Hon'ble Court in the petition.

6. I swear accordingly.

Bangalore DEPONENT

Date: 16.2.2009

No.of corrections:

Identified by me

Advocate

VERIFICATION

I, the abovenamed deponent, do hereby solemnly verify that the contents of the foregoing paragraphs 1 to 5 are true to my knowledge, and that no part of it is false, and nothing material is concealed therefrom.

Verified at , on this the day of February 2008.

Bangalore DEPONENT

Date:

No.of correction

Identified by me:

Advocate

IN THE SUPREME COURT OF INDIA, NEW DELHI

(ORIGINAL JURISDICTION)

CONTEMPT OF COURT PETITION NO. /2009

BETWEEN:

1. Sri. Gajanana Krishna Hire,
aged 63 years,
s/o. Sri. Krishna Ramachandra Hire,
Vydik Vidhvan,
Koti Thirtha Road,
Gokarna, Kumta Taluk,
Uttara Kannada District,
Karnataka State

2. Sri. Dattatraya Sham Bhat Gopi,
aged 62 years,
s/o. Sri. Sham Bhat Ganapayya Gopi,
Vydik Vidhvan,
Koti Thirtha Road,
Gokarna, Kumta Taluk,
Uttara Kannada District,
Karnataka State PETITIONERS

AND:

1. The Principal Secretary to the
Government of Karnataka,
Department of Religious and Charitable
Endowments,
Revenue Department,
M.S. Building, Vidhana Veedhi,
Bangalore – 560 001

2. Sri. L.S. Srikantha Babu,
major, Desk Officer,
Revenue Department (Muzrai)
Government of Karnataka,
M.S. Building, Vidhana Veedhi,
Bangalore – 560 001 RESPONDENTS

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MEMORANDUM OF CONTEMPT OF COURT PETITION UNDER ARTICLE 129 OF THE CONSTITUTION OF INDIA R/W RULE 3 (C) OF THE RULES TO REGULATE PROCEEDINGS FOR CONTEMPT OF THE SUPREME COURT, 1975

To:

The Honourable Chief Justice of India
and his companion Justices of the
Honourable Supreme Court of India.

THE HUMBLE PETITION OF THE PETITIONERS ABOVENAMED MOST RESPECTFULLY SHOWETH AS FOLLOWS:

1. The petitioners had approached this Hon'ble Court with a writ petition in W.P.(Civil) No. 510/2008 in which they had questioned, interalia the legality, propriety and correctness of the order dated 12.8.2008 of the Government of Karnataka, contending, interalia, that the said order is and was ultra vires the provisions of Articles 14, , 15, 21, 25 and 26 of the Constitution of India, besides being opposed to the verdict of this Hon'ble Court rendered in the case of Admarmutt Vs. The Commissioner, Hindu Religious & Charitable Endowments Department and others since reported in 1979 (4) SCC at page 642 (AIR 1980 S.C. page 1). In the said ruling of a Constitution Bench of this Hon'ble Court, it has been observed, interalia, in paragraph 31 thereof as follows:

"31. That is how the matter stands today. Twenty-three years have gone by since the States Reorganisation Act was passed, but unhappily, no serious effort has been made by the State Legislature to introduce any legislation – apart from two abortive attempts in 1963 and 1977 – to remove the inequality between the temples and Mutts situated in the South Kanara Dist., and those situated in other areas of Karnataka. Inequality is so clearly writ large on the face of the impugned statute in its application to the District of South Kanara only, that it is perilously near the periphery of unconstitutionality. We have restrained ourselves from declaring the law as inapplicable to the District of South Kanara from today but we would like to make it clear that if the Karnataka Legislature does not act promptly and remove the inequality arising out of the application of the Madras Act of 1951 to the district of South Kanara only, the Act will have to suffer a serious and successful challenge in the not distant future. We do hope that the government of Karnataka will act promptly and move an appropriate legislation, say, within a year or so. A comprehensive legislation which will apply to all temples and Mutts in Karnataka,

> **which are equally situated in the context of the levy of fee, may perhaps afford a satisfactory solution to the problem. This, however, is a tentative view-point because we have not investigated whether the Madras Act of 1951, particularly Sec. 76 (1) thereof, is a piece of hostile legislation of the kind that would involve the violation of Article 14. Facts in regard thereto may have to be explored, if and when occasion arises".**

2. Eventhough the observations extracted above were made in the said ruling rendered as early as on 27.8.1979, the State of Karnataka had not taken the required prompt action to bring in a uniform legislation for governing all the Hindu religious denominations, temples and institutions in the State which were being governed even after 1.11.1956, when the States Re-organisation Act, 1956, came into force, under which the new State of Karnataka took its birth. However, 17 years thereafter, an enactment called the Karnataka Religious and Charitable Endowments Act, 1997, (Karnataka Act No.33/2001) was enacted, but was brought into effect prospectively from 1.5.2003, almost 24 years there after the said mandate. Section 23 of the Act contains a statutory mandate reading thus:

> "**23. Notified Institutions:- The State Government shall as soon as may be after the commencement of this Act publish by notification in respect of each revenue district, a list of;**

(a) all Charitable Institutions and Hindu Religious Institutions which on the date of commencement of this Act are in the sole charge of the State Government or for the benefit of which,

(i) any monthly or annual grant in perpetuity is made from public revenues; or

(ii) tasdik allowance under Section 19 of Mysore Religious and Charitable Inams Abolition Act, 1955 is paid;

(b) all institutions registered under the Book of Endowments under the Hyderabad Endowment Regulations, 1349 F;

(c) all institutions governed by the then Madras Hindu Religious and Charitable Endowments Act, 1951;

(d) all institutions in Kodagu District which are governed by the Coorg Temple Funds Management Act, 1956;

(e) all Hindu Religious Institutions registered under the Bombay Public Trust Act, 1950, which are in receipt of any monthly or annual grant from public revenues or any amount under the Karnataka Certain Inams (Abolition) Act, 1977;

(f) Sri Renuka Yellamma Temple, Sauindatti, governed under the Renuka Yellamma Devasthana (Administration) Act, 1974".

3. In view of the said statutory mandate which obliged the State to notify **all** the Hindu Religious Charitable Institutions in the State, as 'Notified Institutions' within the meaning of Section 2 (20) of the Act, it issued a notification dated 30.4.2003, and

published the same in the Gazette of the State on 1.5.2003 that, in all, 34245 Hindu religious temples and institutions mentioned therein as such institutions, for the purpose of the Act. Sri. Gokarna Mahabaleshwara temple, Gokarna, Uttara Kannada District in Karnataka, which is a registered public trust and a public temple and was then governed by the Bombay Public Trusts Act, 1950, is one of the institutions included in the said notification dated 30.4.2003, its name appearing at Sl.No.92 in the list of temples situate in Kumta Taluk of Uttara Kannada District, in the State of Karnataka. A true and relevant extract from the said notification is filed herewith as **Annexure-P1.** Such an inclusion had been made by the State on the basis of, and upon a consideration of the abundant objective material which it had in its possession.

4. The Karnataka Act No.33/2001 was brought into effect with effect from 1.5.2003, consequent on the same receiving the assent of His Excellency the President of India, who was then holding the said highest constitutional office. The various religious institutions and denominations, including several mutts which felt aggrieved by the said enactment questioned the same before the Hon'ble High Court of Karnataka, Bangalore, in W.P. Nos. 3971/2003 and companion petitions which were all heard and dismissed by a learned single judge of the said court, by his order dated 9.9.2001, commonly rendered in all the said writ petitions, from which had intra court appeals in arisen W.A. No.3440/2005 and the connected writ appeals which have been decided by a Division Bench of the said Court, by its verdict dated 8.9.2006, commonly rendered in all the said appeals. The same has been reported in **ILR 2006**

Karnataka at page 4386. The order dated 9.9.2005 rendered by the learned single judge having not been approved therein, the said appeals have been allowed, following, interalia, the dictum of this Hon'ble Court, in the case reported in 1979 (4) SCC at page 642 A.I.R. 1980 S.C. page 1) (ante), holding that the Karnataka Act No.33/2001 is ultra vires the provisions of Articles 25 and 26 of the Constitution of India, interalia, and that the various provisions thereof being not severable, the entire enactment was susceptible to be declared unconstitutional and void; and hence, would be stuck down as such. The only saving and protection that has been contained in the said verdict is contained in its penultimate paragraph which reads thus:

> **"If any action is taken in terms of the Act prior to the date of the order, the same are protected and this judgment would operate prospectively from the date of this order"**

5. It is thus clear from the observations quoted above, that the notification dated 30.4.2003 (vide Annexure-P1 **ibid)** notifying 34245 Hindu religious institutions and charitable endowments under Section 23 of the Act, as "Notified Institutions" has been remaining unaffected by the prospective declaration made on 8.9.2006 that the Karnataka Act No.33/2001 is unconstitutional and ultra vires.

6. As has been preluded and prefaced herein, the 1st respondent-State has questioned before this Hon'ble Court, in S.L.P. No. (Civil) 5398/2007, the aforementioned judgment and order dated 8.9.2006 rendered by a Division Bench of the Hon'ble High Court of Karnataka. An interim order of stay of

the operation of the said judgment has been granted by this Hon'ble Court, in the said Special Leave Petition which is pending adjudication before this Honourable Court. The said petition had been posted before the Honourable court on several occasions including 6.8.2008. A true copy of the said interim order is filed herewith as **Annexures-P2.** The petitioners respectfully submit that the respondents have committed a gross breach thereof.

7. It is quite apposite in this context to state that the Government has specifically undertaken in the said Special Leave Petition that it proposed to amend the Act, for including in its purview the mutts and temples attached to the mutts, denomination temples and religious and charitable temples of Jains, the Buddhists, Sikhs, etc. The said statements contained in paragraph 5.5 of the said Special Leave Petition read thus:

> **"It is submitted that, considering the grievances urged by the respondents petitioners, the state is proposing to make necessary amendment to the Act to include under the purview of the Act the Mutts, the temples attached to Mutts, denomination temples and to include the Religious and Charitable Institutions of Jains, Buddhists and Sikhs under the purview of the Act. Hence, on this ground also the judgment of the Division Bench of the High Court of Karnataka required to be reversed by recording the submissions of the State to carryout necessary amendments to the Act".**

8. On 20.1.2007 the Government issued an order, obviously in view of the statements quoted above, constituting a High

Level Committee for recommending to the Government as regards the smooth administration of the Hindu religious temples and denominations, and keeping in view the interest of the devotees at large. **Annexure-P3** filed herewith is a copy of the said order which was modified by yet another order dated 13.4.2007, inducting into the said committee two other members, one of them being the administrator of Sri. Ramachandrapura Mutt, Haniya Post, Hosanagar Taluk, Shimoga District in Karnataka State. The said committee having thoroughly gone into the various aspects on which it had to submit its recommendation has submitted to the Government of the State its report dated 13.9.2007. A relevant extract of the said report is filed herewith as **Annexure-P4**. Interalia, the recommendations contained in para 36 thereof as regards notifed institutions read thus:

> **"clause (e) of Section 23 shall be amended as follows:**
> **(e) All Hindu Religious Institutions and Hindu Charitable Endowments registered under the Bomay Public Trust Act, 1950.**
>
> **(e-1) All Hindu Religious Institutions and Hindu Charitable Endowments which are in receipt of any monthly or annual grant from public revenues or any amount under the Karnataka Certain Inams (Abolition) Act, 1977.**

9. The recommendations contained in page 32 thereof, interalia, read thus:

> **"Special provisions:-**
>
> **[i] In respect of Religious Institutions, managed exclusively by Heriditary Trustees, the power of Management shall continue to be vested in them. The**

> **provisions of the Act other than the provisions of constitution of Committee of Management shall be applicable to them".**

10. Quoting the observations made by this Hon'ble Court in the case of the Commissioner HRE Vs. Lakshminda Thirtha Swamy, reported in **AIR 1954 S.C. page 282**, it has been mentioned in page 15 of the report of the committee thus:-

> **"It should be noticed, however, that under Art. 26 (d), it is the fundamental right of a religious denomination or its representative to administer its properties in accordance with law; and the law; therefore, must leave the right of administration to the religious denomination itself subject to such restrictions and regulations as it might choose to impose".**
>
> **A law which takes away the right of administration from the hands of a religious denomination altogether and vests it in any other authority would amount to a violation of the right guaranteed under cl (d) of Art.26".**

11. Even in the wake of the said report which has recommended to the Government in paragraph 23 thereof at pages 43 to 50 of the report that (i) a Rajya Dharmika Parishath should be constituted, empowering the same to resolve any dispute relating to exercise such powers and performance of such duties and functions as might be assigned to it under the provisions of the Act; (ii) that it should have powers general superintendence and control for the purpose of carrying out the provisions of the Act; (iii) that, the said

parishath should resolve disputes as to whether a temple is a public or private denominational temple and should also deal with, and decide all questions and disputes which are incidental to the general powers and should also recommend to the government the notification/denotification in respect of institutions required to be notified under the Act, apparently referable to Section 23 of the Act, the Government has ordered exclusion from the purview of the Act, the world-renowned temple of Sri Gokarna Mahabaleshwara diety, Uttara Kannada District, seemingly as a camouflage, and unauthorisedly and contumaciously saying that the said temple is attached to the mutt named in paragraph 8 supra, and that the said temple is handed over to the control of the said mutt. In doing so, it has even ignored with utter impugnity, the interim order of this Hon'ble Court, and the incontrovertible fact that correspondence having ensued in the matter, the Government itself had admonished the Commissioner for Religious, Charitable Endowments in Karnataka that there was no reason or basis for Sri Gokarna Mahabaleshwara temple or the other 129 temples in Uttara Kannada District and 11 temples of the Chitrapur Saraswathhy Brahman Samaj being denotified. It is relevant in this context to state that, on 14.5.2008 the Government had addressed a letter to the then Commissioner for Religious and Charitable Endowments in Karnataka, as per **Annexure-P5** that the recommendation that had been made by the said Commissioner for denotifying 129 temples in Uttara Kannada District and 11 temples of Sri. Chitrapur Saraswathy Brahman Samaj, from the list of notified institutions having been referred to the Head of the Legal Cell of the Government of Karnataka, a clear legal opinion had been furnished by the said

cell, to the effect that none of the said temples could be denotified, and that, the matter having been objectively considered by even His Excellency - the Governor of Karnataka, he had also approved the same. The last sentence contained in Annexure-P5 (ibid) also clearly admonished that thenceforth no recommendation for deleting or denotifying any institution from the list of notified institutions should be sent to the Government. The legal opinion dated 6.5.2008 referred to therein, a certified copy whereof has been duly obtained under the Right to Information Act, 2005, is extracted hereunder.

"Kum ee 42 Mu aa be 2008

21. I have perused the records.

22. Now, the Administrative Department has sought for the clarification as to whether Sri Kshetra Gokarna Mahabaleshwara temple and other 11 temples mentioned in the letter datd 15.4.2008 given by "Chitrapura Saraswatha Brahmana Samajada Devalayagala Hitha Rakshane Vokkuta, Chitrapura, Shirali" may be denotified.

23. It may be stated that the Honourable High Court of Karnataka in W.A. No.3440/05 was pleased to hold that the Karnataka Hindu Religious & Charitable Act 1997 and Rules 2002 are unconstitutional. However, against the said judgment, the S.L.P. No.5398/07 is preferred before the Honourable Supreme Court of India and the Honourable Supreme Court of India was pleased to stay the judgement of the Honourable High Court of Karnataka and the matter is now pending before the Honourable Supreme Court of India.

24. Hence, it becomes crystal clear that, now the matter is seized before the Honourable

Supeme Court of India, and at this stage, if any decision regarding de-notifying the temples as sought in the clarification, is taken, it may amount to sub-judice.

25. Hence, it is my considered opinion that during the pendency of S.L.P. No.5398/07 before the Honourable Supreme Court of India, it is not advisable to take a decision of dropping of the said temples from the list of notified Institutions and it is feasible to maintain status quo.

Sd/- 06.05.08

(BASAVARAJ S.SAPPANNAVAR)
HLC, RD

The Revenue Secretary"

12. Preceding the issuance of the aforementioned letter dated 14.5.2008, and referring to the same, the office of the Commissioner for Religious and Charitable Institutions in Karnataka had addressed a letter dated 30.6.2008, to the Deputy Commissioner, Uttara Kannada District, reading thus:

"**No. Uniform Legislation/Cr.73/2005-06**

Office of the Commissioner
Religious Endowment Department
Bangalore Date. 30.6.2008

To:

Deputy Commissioner
North Canara
Karwar

Sir,

Sub: Exempting temples from the list of notified institutions published under Karnataka Hindu Religious Institutions and Charitable Endowments Act, 1997 – regarding.

Ref: Government's D O letter No. 42/MuAaBi 2008 dated 14.5.2008

With respect to the above subject in the background of the clear opinion given by the head of legal cell Revenue Department in the matter of dropping 129 temples belonging into different Taluks of North Canara District. 11 temples Chithrapura Saraswatha Brahmana Sect and Shri Kshetra Gokarna Mahabaleshwara Temple that no temple shall be deleted from the list of notified institutions, the Government has informed that no proposal to be sent to the Government hereafter for excluding any temple from the list of notified institutions (copy enclosed).

Therefore, in the background of the above said Government order/opinion it is hereby informed that in future no proposal be sent regarding excluding any temple from the list of notified institutions.

Yours faithfully,
Sd/-
S.T. SUDHA
Head quarter Assistant
Religious Endowment Department, Bangalore".

13. The political scenario in the State having changed in the first week of June 2008, and the present Government in power, headed by the Bharathiya Janatha Party having taken over the reigns of administration of the State, the already closed-chapter was again re-opened, even in the wake of the

conclusion of the said issue before the general elections. Correspondence had ensued in the matter between the Government on the one hand and the Charity Commissioner on the other, and also between the latter and the Deputy Commissioner of Uttara Kannada District. The culmination thereof was the communication dated 14.5.2008, contained in Annexure-P5 supra, communicated to the Deputy Commissioner on 30.6.2008.

14. It would be relevant in this context to state that an association called Shrikshetra Gokarana Upadivantha Mandala had submitted a representation dated 1.2.2008 to the Charity Commissioner, with a copy thereof to the pontiff of the aforementioned Sri. Ramachandrapura Mutt. On the said representation a report from the Tahsildar, Kumta Taluk, Uttara Kannada District, had been called for by the Assistant Commissioner, Kumta Taluk. Thereafter, the Deputy Commissioner, Uttara Kannada District had addressed the Charity Commissioner as per **Annexure-P6** dated 1.4.2008, clearly opining that Sri. Ramachandrapura Mutt being a private institution having its main mutt in Hosanagar Taluk of Shimoga District, there was no provision in the Act for entrusting Sri. Mahabaleshwara Temple then governed by the Bombay Public Trust Act, 1950 - as a public temple - to the control of the said Mutt. The said report submitted to the Commissioner had not only been forwarded to the Government but also to His Excellency the Governor of Karnataka, who, upon an objective examination thereof, and after obtaining legal opinion from the Head of the Legal Cell of the Government had concluded the matter, as already stated. Evenso, the concluded issue was

given again a **kayakalpa** – rejuvenation and rebirth - in the wake of the change in the political scenario and the Chief Minister of the State being a devotee of Sri Ramachandrapura Mutt to which a grant of Rs.2.00 crores has been made by him from the Government's exchequer, for cow- protection. The said grant undoubtedly is laudable.

15. Learning from reliable sources that a surreptitious and unauthorised move was on for denotifying Sri. Gokarna Mahadeva Temple and other public temples formerly governed by the Bombay Public Trust Act 1950, and later governed by the 1997 Act, several representations and objections had been submitted by persons similarly situated like the petitioners to the Charity Commissioner and to the Government. **Annexures-P7, P8, P9 and P10** are translated copies of some of the said representations by way of objections submitted in that regard.

16. Shrikshetra Gokarana Upadivantha Mandala – a defunct Society - on the other hand, also had submitted a representation to His Excellency the Governor of Karnataka on 18.3.2008. Similarly Sri. Ramachandrapura Mutt represented, by its G.P.A. holder also submitted a representation dated 12.4.2008, to the Commissioner for Religious and Charitable endowments in Karnataka, personally on 17.4.2008. A true copy of the said representation submitted by the Mutt is filed herewith as **Annexure-P11.** Interalia, it had been requested therein that the representation submitted by Shrikshetra Gokarana Upadivantha Mandala should be accepted by the Government and that the management, administration and

control of Sri. Gokarna Mahabaleshwara temple should be entrusted to Sri Ramachandra Mutt. All those representations were already before the Government and His Excellency the Governor of Karnataka and the same had been sent on to the Legal Cell for its opinion, as mentioned hereinbefore. Upon an objective consideration of all the said material that had been placed before them, not only the Government, but also His Excellency, the Governor of Karnataka had communicated through Annexure-P6 (ibid) that no such denotification was permissible in law. The said communication dated 14.5.2008 had been followed by a letter dated 27.5.2008 addressed by the Government, to the Charity Commissioner, clearly and unambiguously stating that the proposal that had been made by the Commissioner had been rejected. **Annexure-P12** is a copy of the said letter of the Government, addressed to the Commissioner. It is in the wake of the said rejection which had already reached the office of the Commissioner on 29.5.2008 itself that the letter dated 30.6.2008, the contents whereof have been reproduced hereinbefore, had been addressed by him to the Deputy Commissioner of Uttara Kannada District. These incontrovertible facts which are testified by documents of probative value, copies whereof have been obtained by the petitioners under the Right to Information Act, 2005, eloquently establish and demonstrate that not only the failure to act on, and abide by the unqualified undertaking that has been furnished to this Honourable Court in paragraph 5.5 of its Special Leave Petition mentioned above, but even the denotification of and entrustment to the mutt that the Government has ordered are grossly contumacious.

17. Notwithstanding the specific undertaking that has been furnished to this Hon'ble Court in paragraph 5.5. of the Special Leave Petition No. 5398/2007 (Civil) of the State of Karnataka, that the Government would propose to make necessary amendments to the Karnataka Act No.33/2001 for including in the said enactment the Mutts, the temples attached to the mutts, denomination temples and also the religious and charitable institutions of Jains, Buddhists and Sikhs within the purview of the said enactment; and having persuaded this Hon'ble Court on the basis of such an undertaking that has been unconditionally furnished to this Hon'ble Court for granting the interim order mentioned above, it has failed to do so, till date. Besides, quite deliberately, and contumaciously the Government has passed an order dated 12.8.2008 bearing order No. G.O. No. Kum. Ee.56 Mu Aa Be 2008, a true translated copy whereof is filed herewith as **Annexure-P13** whereby the undertaking furnished to this Hon'ble Court has been consciously committed breach of by the Government. By the said order not only has Sri. Gokarna Mahabaleshwara Temple, Gokarna, which is one amongst the 34245 religious, temples and denominations which have been duly notified as such under Section 23 of the Karnataka Act No.33/2001 been de-notified, erroneously stating that the said temple and the temples attached thereto are statedly attached to Sri. Ramachandrapura Mutt, Haniya Post, Hosanagar Taluk, Shimoga District, Karnataka State, but also that the control, management, administration and supervision of the said temples are unconditionally transferred and handed over to the said mutt, thereby to attempting to interpret the provisions of the aforementioned enactment as not including the temples

attached to mutts, and that the temples mentioned above are statedly attached to the aforementioned mutt. The legality and propriety vires of the said order apart, questioning which several writ petitions have been filed in the Hon'ble High Court of Karnataka at its Principal Bench at Bangalore and also at its Circuit Bench at Dharwad, it is most respectfully submitted that the said order is a grossly contumacious act, constituting a serious contempt of this Hon'ble Court which the respondents herein have deliberately committed by breaching the undertaking that has been furnished to this Hon'ble Court in the aforementioned Special Leave Petition, which is pending adjudication before this Hon'ble Court.

18. It would be relevant at this stage to state that in the writ petition that the petitioners herein had filed in this Hon'ble Court under Article 32 of the Constitution of India in W.P.(Civil) No.510/2008 questioning the propriety, legality and vires of the aforementioned government order dated 12.8.2008, an order has been passed by this Hon'ble Court on 14.11.2008 as per **Annexure-P14** filed herewith. In view of the said order the petitioners have promptly moved the Hon'ble High Court of Karnataka at Bangalore, with an application for impleading themselves as parties to the various writ petitions which are pending adjudication before the said court in which the Government Order mentioned above has been challenged by many others.

19. As has been already stated in the earlier paragraphs of this petition, the Government had constituted a committee headed by a retired Chief Justice of the Hon'ble High Court of

Judicature, Punjab and Haryana, for recommending to the Government suitable amendments, incorporation whereof which into the Karnataka Act No.33/2001 would remove the anomalies which have been pointed out in the judgment of the Division Bench of the Hon'ble High Court, in which the Karnataka Act No.33/2001 has been struck down as ultra vires.

20. One of the reasons that had weighed with the Hon'ble High Court for declaring the aforementioned enactment as ultra vires is that mutts, temples attached to mutts, the religious denominations of the Jains, the Buddhists and the Sikhs have been excluded from the purview of the Act and that the same would therefore be violative, interalia of Articles 14, 25 and 26 of the Constitution of India, besides being opposed to the very object of the Act and the ruling of this Hon'ble Court rendered in in the case of Sri.Admar Mutt (vide 1979 (4) (SCC) page 642) that a comprehensive legislation which would apply to all **temples and mutts** in Karnataka has to be passed by the State Legislature, lest, the statutory provisions questioned in Admar's Mutt case were likely "to suffer perilously near the periphery of unconstitutionality thereof being declared" by this Hon'ble Court. It is in the said backdrop that a comprehensive enactment had to be enacted and the same ought to include all the mutts and temples had to be enacted.

21. The issuance of the Government Order dated 12.8.2008 has constituted a serious affront to and a deliberate contempt of this Hon'ble Court. Far from including all the mutts etc., within the purview of the Act, what is incredible and shocking is that having furnished an unqualified undertaking to this Hon'ble

Court, as extracted earlier in this petition, the Government has acted not only contrary to the said undertaking, but even in a manner plainly opposed to the report of the High Level Committee that the Government had appointed, pursuant to the interim order of this Hon'ble Court, rendered in the Special Leave Petition mentioned above. Apart from being an act of arbitrariness and favouritism, the issuance of the said Government Order is plainly contumacious. Failure to amend the law appropriately, as undertaken by the State, in the Special Leave Petition is yet another act of a gross contempt of this Hon'ble Court that the State has committed.

22. In order that the contents of the Special Leave Petition of the State of Karnataka, which contains the undertaking extracted above and on the basis of which this Hon'ble Court has been pleased to pass an interim order in the Special Leave Petition, are appraised to this Honourable Court, a true copy of the said petition is filed herewith as **Annexure-P15**.

23. Notwithstanding that the Government is quite well aware of the unqualified undertaking contained in the aforementioned petition filed in this Hon'ble Court, in the Special Leave Petition mentioned above and the same having been categorically brought to the notice of even the Law Department of the State, that, in the wake of such an undertaking, de-notification of the temples, statedly belonging a private to mutt would be contumacious, the said order has been issued in utter disregard of the said undertaking, without even moving this Hon'ble Court for any leave, permission or the like for issuance of any such order that any temple attached to any mutt in any given case,

would be taken out of the purview of the Karnataka Act No.33/2001, even assuming that the assumptions contained in the said order are true.

24. The breach of the undertaking mentioned above that the Government has deliberately resorted to constitutes a serious contempt of this Hon'ble Court, besides even the issuance of the aforementioned Government Order being high contumacious. The majesty and supremacy of law and the highest judicial authority of this Hon'ble Apex Court are therefore required to be vindicated, and protected and hence, it is just, expedient and necessary that this Hon'ble Court be pleased to initiate appropriate action against the respondents who have committed and perpetuated such a gross and deliberate contempt of this Hon'ble Court.

25. No such amendment, as has been undertaken been brought or even proposed till date. Added to the same, action which is quite opposed to the letter and spirit of the said undertaking has been contumaciously resorted by the respondents by issuing the Government Order dated 12.8.2008.

26. The petitioners have immense faith and belief in the rule of law and have thus honestly felt it appropriate and necessary that the contempt of this Hon'ble Court that the respondents have committed is brought to the kind notice of this Hon'ble Court, for enabling appropriate action being taken against the respondents for the breach that they have committed. Further, as devotees and Upadivanthas of Sri.Gokarna

Mahabaleshwara diety, Gokarna, they had moved this Hon'ble Court with a writ petition, as already stated, and have thereafter moved an interlocutary application before the Hon'ble High Court of Karnataka for their being impleaded as parties to the writ petitions in which the Government Order mentioned above has been challenged by others.

27. The, deliberate failure to act as undertaken and the action of the Government in issuing the aforementioned Government Order dated 12.8.2008 are both calculated to bring down the high judicial authority of this Hon'ble Court, and also to show a scant disrespect thereto, ignoring, not only its undertaking furnished to this Hon'ble Court, but also to the verdict of a Constitution Bench of this Hon'ble Court, rendered in the case of Sri. Admar Mutt Vs. The Commissioner for Religious and Charitable Endowments reported in 1979 (4) SCC at page 624, and also the report of the High Level Committee that the Government itself had constituted, in which it has been specifically recommended to the Government, that all the mutts and temples attached thereto should also be brought within the purview of the Karnataka Act No.33/2001. Besides failing to act as has been undertaken and as has been recommended by the aforesaid committee, the Government has issued the impugned order, contrary thereto. Hence, this petition.

28. No other petition for the same or similar relief has been filed by the petitioners herein, previously, in this Hon'ble Court or in any other court of law.

29. The contempt attributed in this petition has been committed by the respondents on 20.12.2006 when the undertaking contained in the Special Leave Petition mentioned above was sworn to; again on 2.4.2007 when, acting on the said solemn undertaking this Hon'ble Court was pleased to entertain the said Special Leave Petition and grant an interim order therein, and on 12.8.2008 when the Government Order has been issued and is being perpetuated continuously till date.

PRAYERS

30. For the foregoing reasons, it is respectfully prayed that this Hon'ble Court be pleased to:-

(i) ***initiate*** and take appropriate action against the respondents for the gross contempt of this Hon'ble Court that they have committed by their failure to abide by and act on the unqualified undertaking that is contained in paragraph 5.5 of the Special Leave Petition (C) No. 5398/2007 (vide Annexure-P15) and in issuing the G.O. bearing No. G.O. No. Kum.ee.56 Mu aa be 2008 dated 12.8.2008 (vide Annexure-P13) in utter breach of the said specific undertaking that has been so furnished by the State of Karnataka, in the said petition, and punish the respondents for the contempt of this Hon'ble Court, that they have thereby committed;

and

(ii) ***pass*** such other or further orders as this Hon'ble Court may deem just, expedient and necessary for upholding the majesty of law and the highest judicial authority of this Hon'ble Court, including the grant of the costs of this petition, in the interest of justice and equity.

New Delhi Advocate for the Petitioners
Date: 16.2.2009

Filed by: